

Comment on Proposed Information Collection: "Race and Ethnic Data Reporting Form" (Form HUD-27061)

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Re: 60-Day Notice of Proposed Information Collection: Standardization Form for "Race and Other Demographic Data Reporting Form-HUD 27061"
(the collection proposed for renewal: "Race and Ethnic Data Reporting Form," Form HUD-27061)
Docket No. FR-7093-N-02
OMB Control No. 2535-0113
91 Fed. Reg. 35,697 (June 12, 2026)
FR Doc. 2026-11891
Regulations.gov Docket ID: HUD-2006-0214
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Comment deadline: August 11, 2026

To: Christine Brown, Senior Management and Program Analyst, U.S. Department of Housing and Urban Development, 2415 Eisenhower Avenue, W 6157, Alexandria, Virginia 22314

I submit this comment in my individual capacity in response to HUD's 60-Day Notice of Proposed Information Collection published at 91 Fed. Reg. 35,697 (June 12, 2026), which proposes the "Renewal of current approved collection" associated with Form HUD-27061, the "Race and Ethnic Data Reporting Form," OMB Control No. 2535-0113. I am a law student; my student note on disability and fair-housing administration will be published; and I have served as a research assistant on empirical fair-housing research. I note that the most recent approval for this collection stated an expiration date of June 30, 2026, which has passed while this renewal remains pending; as of the date of this comment, I have located no extension request or successor information-collection request for this control number in OMB's public records. The Notice invites public comment on four enumerated criteria under the Paperwork Reduction Act ("PRA"), 44 U.S.C. 3506(c)(2)(A). I address each in turn.

My central concern is a practical-utility defect that runs through all four criteria: the Notice describes a collection materially broader than the instrument HUD actually fields. The abstract represents that the form collects "other protected class data . . . as required by . . . the Fair Housing Act," 91 Fed. Reg. at 35,698, but the operative instrument is a race-and-ethnicity form that omits the disability ("handicap") categories the Fair Housing Act and HUD's own regulations identify. Because the collection is described broader than it is built, HUD cannot certify on the present record that it has the practical utility the PRA requires for the Fair Housing Act function the abstract names.

I. Criterion (1): Whether the collection is necessary for the proper performance of HUD's functions, including whether the information will have practical utility.

OMB may approve a collection only where the agency demonstrates that the information "is necessary for the proper performance of the functions of the agency, including whether the information shall have practical utility." 44 U.S.C. 3506(c)(2)(A); see 5 C.F.R. 1320.5(d)(1)(i), (iii). "Practical utility" means "the actual, not merely the theoretical or potential, usefulness of information to or for an agency, taking

into account its accuracy, validity, adequacy, and reliability." 5 C.F.R. 1320.3(l). The question is not whether the form is useful in the abstract, but whether the instrument as fielded actually delivers the information the agency invokes to justify it.

The Notice fails that test because the collection is described broader than it is built. The abstract states that HUD program offices use Form HUD-27061 "when collecting information concerning the race, ethnicity, **and other protected class data** of the populations intended to benefit from HUD funding **as required by Title VI of the Civil Rights Act of 1964; the Fair Housing Act; and HUD's regulations.**" 91 Fed. Reg. at 35,698 (emphases added). The abstract thus represents to OMB and the public that the instrument captures protected-class data beyond race and ethnicity, sufficient to satisfy the Fair Housing Act, not merely Title VI. The Notice's caption points the same direction: it still carries the broader title, "Race and Other Demographic Data Reporting Form," while the collection it proposes to renew is the race-and-ethnicity instrument.

The operative instrument does not match that description. The form is titled, and functions as, a "Race and Ethnic Data Reporting Form"; its data categories are race and ethnicity. It does not collect the disability ("handicap") data that the Fair Housing Act and HUD's own regulations identify as a protected-class characteristic. The Fair Housing Act prohibits discrimination "because of a handicap," 42 U.S.C. 3604(f), and HUD's demographic-data regulation identifies "handicap and family characteristics" as collection categories alongside race and ethnicity, 24 C.F.R. 121.2. HUD itself has invoked Part 121 - whose enumerated categories include "handicap and family characteristics" - as authority for broader protected-class collection in the prior 60-day notice for this same control number, see 87 Fed. Reg. 58,524, 58,525 (Sept. 27, 2022), although the broader categories described there were not carried forward into the collection approved in 2023, see 88 Fed. Reg. 5,370 (Jan. 27, 2023). And HUD's own 2023 Supporting Statement for this control number stated that when Form 27061-H undergoes PRA renewal, "among other HUD forms," HUD "will evaluate inclusion of SOGI data collection, among other protected characteristics, to inform its grantmaking and oversight"; the present renewal record should therefore explain whether HUD evaluated the Part 121 disability/"handicap" category during this renewal and, if not, why the promised evaluation of "other protected characteristics" does not extend to it. Supporting Statement A, Form HUD-27061, OMB Control No. 2535-0113, at Item 8 (2023). The renewed instrument, by its own terms, collects neither handicap nor family-characteristics data.

This is a practical-utility defect, not a quibble about scope. Where an instrument is described as capturing Fair Housing Act "protected class data" but in fact captures only race and ethnicity, it cannot have the "actual, not merely the theoretical or potential, usefulness," 5 C.F.R. 1320.3(l), for the Fair Housing Act compliance function the abstract names: the form cannot supply data it does not request. The mismatch leaves OMB unable to make the practical-utility finding 5 C.F.R. 1320.5(d)(1) requires, because the supporting justification (Fair-Housing-Act protected-class data) and the instrument (race and ethnicity only) do not correspond.

I do not contend that race-and-ethnicity collection lacks utility for Title VI purposes. I contend that the Notice claims more than the instrument delivers, and that the unsupported increment - Fair Housing Act "other protected class data" - cannot be certified as having practical utility on the present record. Accordingly, I respectfully request that HUD explain, in its supporting statement and response to

comments, the basis for renewing a collection whose stated purpose ("other protected class data . . . as required by . . . the Fair Housing Act") is broader than the data the form actually collects, and whether a collection that omits the disability categories Part 121 identifies has practical utility for the Fair Housing Act purposes the Notice invokes. Congress has directed annual reporting of handicap and family characteristics data, see 42 U.S.C. 3608(e)(6), and has expressly authorized rules for the collection, maintenance, and analysis of appropriate data, see 42 U.S.C. 3614a, so I further request that HUD explain whether a renewed collection that omits disability data is "necessary for the proper performance of [HUD's] functions" under the Fair Housing Act when HUD possesses express authority to collect that data. Finally, I request that HUD identify which program office or data system, if any, separately captures the Fair Housing Act disability data the abstract describes, if this form does not.

II. Criterion (2): The accuracy of HUD's estimate of the burden of the proposed collection.

The Notice estimates 14,375 respondents, 17,250 annual responses, 0.50 hours per response, and 8,625 total annual burden hours, 91 Fed. Reg. at 35,698 - by the agency's own account, the same estimate as the prior, currently approved collection. The PRA requires a burden estimate that is accurate for the collection as described. 44 U.S.C. 3506(c)(1)(A)(iv); 5 C.F.R. 1320.8(a)(4).

Read against the abstract, the unchanged estimate is itself evidence of an accuracy problem. One of two things must be true:

1. **The described scope is accurate** - the form genuinely collects "other protected class data . . . as required by . . . the Fair Housing Act," including disability-related characteristics - in which case the 0.50-hour and 8,625-hour figures cannot be correct, because they are carried over unchanged from a race-and-ethnicity-only collection and account for no additional fields; **or**

2. **The burden estimate is accurate** - the form imposes exactly the same per-response burden as the prior race-and-ethnicity collection - in which case the instrument plainly collects nothing beyond race and ethnicity, and the abstract's representation of broader Fair Housing Act "protected class data" collection overstates the collection.

The agency cannot have it both ways. A burden figure transcribed without change from the prior cycle is reliable evidence that the instrument is unchanged - and therefore that the abstract's "other protected class data . . . Fair Housing Act" language overstates the collection. The accuracy of the burden estimate and the accuracy of the abstract are in tension, and resolving that tension exposes the described-broader-than-built mismatch.

HUD should reconcile the two. If it adopts the narrower (race-and-ethnicity) scope, it should correct the abstract; if it adopts the broader (Fair-Housing-Act-protected-class) scope, it should re-estimate burden to reflect the added fields, including disability-compliance fields. The current record - an unchanged burden figure accompanying an enlarged described scope - does not present an accurate burden estimate for the collection as described.

III. Criterion (3): Ways to enhance the quality, utility, and clarity of the information to be collected.

The most effective way to enhance the utility and clarity of this collection - and to cure the practical-utility defect identified in Part I - is to bring the instrument into correspondence with the Fair Housing Act compliance function the abstract already names. HUD should establish a distinct, privacy-tiered disability-compliance data element (or a companion collection cross-walked to this OMB control number) capturing **aggregate** disability-related compliance data, separate from any individual race-and-ethnicity reporting. Specific fields HUD should consider:

1. **Aggregate accessible-unit inventory and need.** For covered programs, the number of Section 504 accessible dwelling units, reported against the regulatory benchmarks HUD already administers. See 24 C.F.R. 8.22 (new construction minimums), 8.26 (distribution of accessible units), 8.27 (occupancy of accessible units). These are duties HUD already enforces; aggregate reporting against them would have direct practical utility for the agency's existing Section 504 oversight.

2. **Aggregate reasonable-accommodation request and disposition counts.** The number of reasonable- accommodation and reasonable-modification requests received, granted, denied, and pending, reported in aggregate by program. Aggregate request-and-disposition data of this kind can reveal compliance patterns without requiring individualized adjudication of any single request. See GAO-23-105083, at 18-19.

3. **The Part 121 "handicap" category, conformed to the abstract.** Because the abstract claims Fair Housing Act "protected class data" collection, and because 24 C.F.R. 121.2 identifies "handicap and family characteristics" as collection categories, HUD should add the handicap data element the abstract already implies - consistent with the very Part 121 authority HUD invoked at 87 Fed. Reg. 58,524, 58,525 (Sept. 27, 2022). I request that HUD address whether the renewed form should be revised to enhance the quality, utility, and clarity of the information collected by including these categories, or alternatively explain why they are excluded.

Privacy tiering. These enhancements can and should be designed to minimize privacy intrusion. The current public form states that the reported information "will not be held confidential" and may be released under the Freedom of Information Act. Disability-related compliance data is more sensitive than the program-level demographic data the form now collects. HUD should therefore structure the disability-compliance element as **aggregate, entity-level reporting** (counts at the program-participant or project level), not individual self-identification, so that no individual's disability status is reported on a form subject to FOIA release. Aggregate counts deliver the compliance-monitoring utility HUD's Fair Housing Act and Section 504 functions require while avoiding the confidentiality concerns individual disability disclosure would raise. This design choice simultaneously enhances utility (Part III), respects burden minimization (Part IV), and resolves the confidentiality mismatch on the current form.

These changes would convert the collection from one whose described scope outruns its instrument into one whose instrument actually delivers the Fair Housing Act compliance data the abstract promises - the precise improvement the PRA's "practical utility" and "quality, utility, and clarity" criteria contemplate.

IV. Criterion (4): Ways to minimize the burden of the collection on those who are to respond, including through automated collection techniques or other forms of information technology.

The enhancements proposed in Part III can be implemented in a way that minimizes - not increases - respondent burden, consistent with 44 U.S.C. 3506(c)(3) and 5 C.F.R. 1320.8(a)(5). I recommend three burden-minimizing design choices:

1. **Aggregate rather than individual reporting.** Collecting disability-compliance data as aggregate counts at the program or project level is far less burdensome than individual self-identification. Aggregate fields can draw substantially on records many covered entities already maintain to comply with their existing Section 504 obligations under 24 C.F.R. 8.22, 8.26, and 8.27, so for such respondents the marginal reporting burden is largely the transcription of figures already held, not the generation of new individualized records.
2. **Electronic and system-integrated collection.** HUD should permit and prefer electronic submission, and where feasible pre-populate or auto-derive aggregate fields from data already resident in HUD reporting systems (for example, existing accessible-unit and program-participation data), so respondents confirm rather than re-enter. Automated collection of this kind is precisely the burden-reduction technique criterion (4) directs the agency to pursue.
3. **Phased implementation.** To avoid a one-time burden spike, HUD should phase in any new disability-compliance fields - beginning with the aggregate accessible-unit and reasonable-accommodation- disposition counts that respondents can most readily supply from existing records - and calibrate the per-response time estimate accordingly, rather than (as in the current Notice) carrying the prior 0.50-hour figure forward unchanged.

Designed this way, the corrected collection would close the described-broader-than-built gap without imposing disproportionate burden, and the agency's burden estimate would for the first time accurately reflect the scope it describes.

V. Specific Requests.

For the foregoing reasons, I respectfully request that HUD, in connection with this renewal and its submission to OMB:

1. **Reconcile the abstract with the instrument.** Either (a) revise the abstract at 91 Fed. Reg. 35,698 to state accurately that Form HUD-27061 collects race and ethnicity data only and is keyed to Title VI, deleting the representation that it collects "other protected class data . . . as required by . . . the Fair Housing Act"; or (b) revise the instrument, or establish a companion collection cross-walked to this control number, to collect the Fair Housing Act protected-class (disability) data the abstract describes, in the aggregate, privacy-tiered form described in Part III.
2. **Decline to certify practical utility for the broader described scope on the present record.** Because the instrument as fielded collects only race and ethnicity, HUD should not represent to OMB that the collection has practical utility for Fair Housing Act protected-class-data purposes unless and until the instrument is conformed to that scope. See 5 C.F.R. 1320.3(l), 1320.5(d)(1)(iii).
3. **Correct or re-estimate the burden figures.** Reconcile the unchanged 8,625-hour estimate with the described scope: retain it only if the collection is narrowed to race and ethnicity, and re-estimate it if

disability-compliance fields are added. See 5 C.F.R. 1320.8(a)(4).

4. Add an aggregate, privacy-tiered disability-compliance data element, consistent with 24 C.F.R. Part 121 (esp. 121.2) and HUD's Section 504 duties under 24 C.F.R. 8.22, 8.26, and 8.27, comprising at minimum (a) aggregate accessible-unit inventory and need and (b) aggregate reasonable-accommodation request-and-disposition counts, designed as entity-level aggregates not subject to individual disability disclosure under FOIA.

5. Implement any added fields through burden-minimizing means - aggregate reporting, electronic and system-integrated submission, and phased rollout - with a correspondingly recalibrated per-response burden estimate.

6. Identify the substitute system, if any, on every branch. Whether or not HUD revises the abstract, and whether or not HUD adds fields to Form HUD-27061 in this renewal, I request that HUD identify in the supporting statement the program office, form, OMB control number, database, data fields, confidentiality tier, and public-reporting cadence - if any - through which HUD separately captures the Fair Housing Act disability or "handicap" data the abstract describes. If HUD's position is that no HUD collection captures that information, I request that HUD say so. If HUD declines the foregoing requests, I further request that HUD explain the basis for renewing a collection whose described scope exceeds the data the form collects.

7. Docket this comment and address it in the Supporting Statement. Include this comment in the administrative record for this collection, Docket No. FR-7093-N-02, and address it in the Supporting Statement accompanying any submission to OMB for this renewal, including the agency's summary of public comments and its explanation of any decision to leave the form, abstract, or burden estimate unchanged. See 5 C.F.R. 1320.5(a), 1320.8(d).

Thank you for the opportunity to comment.

Respectfully submitted,

Nicholas Gill Tucson, Arizona [REDACTED] July 6, 2026

Submitted in individual capacity via www.regulations.gov under Docket No. FR-7093-N-02; comment period closes August 11, 2026.